

Hands-On-Learning: Crafting a Legal Process Matrix

Overview

Learning Objective Alignment: LO1 – Legal frameworks. This lab directly assesses your ability to apply U.S. legal standards (Fourth Amendment, SCA, Pen Register Act) to a given investigative scenario.

Scenario

An investigator with a state-level cybercrime task force is assigned a case involving a former employee, "John Doe," who is suspected of corporate espionage. The company, a tech startup named Innovate Inc., reports that Doe allegedly exfiltrated proprietary source code and customer lists in his last week of employment. The company's internal investigation found that Doe wiped his company laptop, but they have provided the investigator with the IP address of Doe's home internet service and his personal email address.

The investigator believes Doe used his personal email, a cloud storage account, and his personal cell phone to coordinate the theft. The crime occurred within the last 30 days. Critically, the company's General Counsel informs you they just received an anonymous tip that Doe is actively negotiating to sell the stolen data to a foreign competitor and the deal is expected to close in the next 48 hours.

Pre-Lab Requirements

Tools: A text editor or word processing application (e.g., Microsoft Word, Google Docs, Notepad++).

Environment: A computer with internet access to reference legal concepts if needed.

Prerequisites: You must have completed all nine videos for Module 1:

Lesson 1: Fourth Amendment in the Digital Age, Search Warrants and Digital Evidence, Consent and Exigent Circumstances.

Lesson 2: Computer Fraud and Abuse Act, Electronic Communications Privacy Act, Emerging Federal Legislation.

Lesson 3: Multi-Jurisdictional Investigations, International Cooperation Frameworks, Cross-Border Evidence Challenges.

Step-by-Step Walkthrough

Phase 1 – Deconstruct the Scenario

Step 1: Read the scenario carefully. In your document, create a section titled "Investigative Goals."

Step 2: List the key questions the investigator needs to answer. For example: Who did John Doe communicate with? What data did he transfer? Where is the stolen data now? What was his timeline of activity?

Expected Result: You should have a clear list of 3-5 high-level objectives for the investigation.

Phase 2 – Identify Potential Evidence

Step 1: Create a new section in your document titled "Potential Digital Evidence."

Step 2: Based on the scenario and your investigative goals, list every potential piece of digital evidence you would want to obtain. Be specific. Don't just write "email"; write "Content of emails from Doe's personal account."

Expected Result: A detailed list of at least 5-7 distinct types of evidence. Think about subscriber information, transactional records (logs), and the actual content of communications.

Phase 3 – Build the Legal Process Matrix

Step 1: This is the core of the lab. Create a table in your document with the following four columns: Evidence Type, Required Legal Tool, Legal Standard, and Governing Law/Statute.

Step 2: Populate the Evidence Type column with the list you created in Phase 2.

Step 3: For each piece of evidence, fill in the remaining three columns. Determine the correct legal instrument (e.g., Grand Jury Subpoena, § 2703(d) Order, Search Warrant, Pen/Trap Order), the justification required (e.g., Relevance, Specific & Articulable Facts, Probable Cause), and the primary law that governs access to that data (e.g., Stored Communications Act, Pen Register Act).

Expected Result: A completed matrix that correctly maps each piece of evidence to the required legal process. See the example below.

Example Row for Matrix:

Evidence Type	Required Legal Tool	Legal Standard	Governing Law/Statute
Name/address of the owner of Doe's home IP address	Grand Jury Subpoena	Relevance to investigation	18 U.S.C. § 2703(c)(2) (SCA)

Deliverables

- 1** Legal Process Matrix Document: A single document (.docx or .pdf) containing your work from all three phases. The final matrix should be complete and well-organized.
- 2** File Naming Convention: [YourLastName]_M1_Lab.pdf

Assessment Criteria

Your submission will be graded based on the following rubric:

Scenario Analysis (20%): Did you accurately identify the core investigative goals?

Evidence Identification (30%): Did you create a comprehensive list of relevant potential evidence types, distinguishing between content and non-content?

Matrix Accuracy (50%): Is the Legal Process Matrix correct? Did you specify the right legal tool, standard, and statute for each piece of evidence?

Reflection Questions

(To be answered for your own benefit, not for submission)

1

How does the 48-hour deadline mentioned in the scenario potentially trigger the "exigent circumstances" exception to the warrant requirement for any part of your investigation? What are the risks of relying on it?

2

If the cloud storage provider Doe used was based in a country with no MLAT with the United States, how would your strategy have to change? What provisions of the CLOUD Act might apply?

3

Why is it critical to use the correct legal tool? What are the consequences of using a subpoena when a § 2703(d) Order is required for transactional records?

Additional Resources

[U.S. Department of Justice - Search and Seizure Manual](#)

[18 U.S. Code § 2703 - Required disclosure of customer communications or records](#)

Instructions for Documenting and Sharing The Project for Peer Review

Document the Project



Use word processing software to create your report.

Ensure all sections of the project document structure are completed.

Proofread and edit your report for clarity and accuracy.



Share the Project

Document: Save the report in PDF format.

Upload: Share in the “Peer Review” area of the course shell with a brief description.



Peer Review

Review the projects submitted by your peers.

Provide constructive feedback and comments on their work.